

1 ENGROSSED HOUSE AMENDMENT
TO
2 ENGROSSED SENATE BILL NO. 423 By: Rader of the Senate
3 and
4 Caldwell (Chad) of the
5 House
6
7 An Act relating to medical records; amending 76 O.S.
8 2021, Section 19, which relates to access to medical
9 records; modifying applicability of certain
10 provisions; eliminating certain duties of health care
11 providers; authorizing imposition of certain fees;
12 modifying certain fee limits; defining terms; making
13 certain acts unlawful; creating misdemeanor offense;
14 providing administrative and criminal penalties;
15 providing for civil relief; updating statutory
16 language; and providing an effective date.
17
18 AMENDMENT NO. 1. Strike the title, enacting clause, and entire bill
19 and insert:
20
21 "An Act relating to medical records; amending 76 O.S.
22 2021, Section 19, which relates to access to medical
23 records; modifying applicability of certain
24 provisions; eliminating certain duties of health care
providers; authorizing imposition of certain fees;
modifying certain fee limits; defining terms; making
certain acts unlawful; providing administrative
penalties; providing for civil relief; and providing
an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 76 O.S. 2021, Section 19, is
amended to read as follows:

1 Section 19. A. 1. Any person who is or has been a patient of
2 ~~a doctor, hospital or other medical institution~~ health care provider
3 or health care facility, or such person's personal representative,
4 shall, as provided under 45 C.F.R., Section 164.502, be entitled,
5 upon request, to obtain access to the information contained in the
6 patient's medical records including any x-ray or other photograph or
7 image, pathology slide, or the patient's medical bills.

8 2. Disclosure of the information described in paragraph 1 of
9 this subsection regarding a deceased patient shall require either a
10 court order or a written release of an executor, administrator, or
11 personal representative appointed by the court, or if there is no
12 such appointment, by the spouse of the patient or, if none, by any
13 responsible member of the family of the patient. As used in this
14 paragraph, "responsible family member" shall mean the parent, adult
15 child, adult sibling, or other adult relative who was actively
16 involved in providing care to or monitoring the care of the patient
17 as verified by the ~~doctor, hospital or other medical institution~~
18 health care provider or health care facility responsible for the
19 care and treatment of such person.

20 ~~2. Any person who is or has been a patient of a doctor,~~
21 ~~hospital or other medical institution shall be furnished copies of~~
22 ~~all medical records including any x-ray, other photograph or image,~~
23 ~~pathology slide or all medical bills pertaining to that person's~~
24 ~~case upon request and upon the tender of the expenses enumerated in~~

~~this paragraph. The cost of each copy to such person or to the personal representative, spouse or responsible family member of such person, not including any x-ray or other photograph or image or pathology slide, shall be fifty cents (\$0.50) for each page.~~

3. A health care provider or health care facility may impose a reasonable, cost-based fee when patients or their personal representatives request copies of medical records; provided, that the fee includes only the cost of applicable expenses listed in 42 C.F.R., Section 164.524(c) (4) .

4. Requests for medical records and medical bills from, or directed to, attorneys, insurance companies, other third parties, and by way of subpoena shall be charged a base fee of ~~Twenty Dollars (\$20.00)~~ not more than Twenty-five Dollars (\$25.00) in addition to ~~the a per page charges required pursuant to this section~~ fee of:

- a. not more than seventy cents (\$0.70) for paper copies,
plus postage or delivery fee, or
- b. not more than forty cents (\$0.40) for electronic
copies.

The base fee shall be charged regardless of whether any records related to the request are located. A fee of not more than Fifteen Dollars (\$15.00) shall be charged if a certification or an affidavit by the provider regarding the authenticity of the medical records or bills is requested. ~~The physician, hospital or other medical professionals and institutions, or their business associates as the~~

~~term is defined in Section 160.103 of Title 45 of the United States Code of Federal Regulations shall produce the records in digital form at the rate of thirty cents (\$0.30) per page if:~~

~~a. the entire request can be reproduced from an electronic health record system,~~

~~b. the records are specifically requested to be delivered in electronic format, and~~

~~c. the records can be delivered electronically.~~

~~If a provider or business associate transmits the records electronically, no postage shall be charged but a delivery charge shall apply. In no event shall a charge for the reproduction of electronically stored and delivered medical records pursuant to this paragraph exceed Two Hundred Dollars (\$200.00) Two Hundred Seventy Dollars (\$270.00) plus postage or delivery fee. The cost of each printed x-ray, other photograph, or image to such person or to the legal representative of such person shall be not more than Fifteen Dollars (\$15.00). If the x-ray, other photograph, or image is provided on a CD/DVD or other electronic media, the fee shall be ~~Twenty Dollars (\$20.00)~~ not more than Twenty-five Dollars (\$25.00) per CD/DVD or other electronic media. ~~The physician, hospital, or other medical professionals and institutions, or their business associates as the term is defined in Section 160.103 of Title 45 of the United States Code of Federal Regulations, shall not charge a person who requests their own record a fee for searching,~~~~

1 ~~retrieving, reviewing, and preparing medical records of the person.~~
2 ~~No mailing fee shall be charged for copies provided by facsimile.~~
3 ~~All requests for medical records made pursuant to this subsection~~
4 ~~shall be subject to the fees described in this section regardless of~~
5 ~~where the copies or electronic versions of such records are actually~~
6 ~~produced.~~

7 ~~3. 5.~~ The provisions of ~~paragraphs 1 and 2 of~~ this subsection
8 shall not apply to:

9 a. psychological, psychiatric, mental health, or
10 substance abuse treatment records. In the case of
11 psychological, psychiatric, mental health, or
12 substance abuse treatment records, access to
13 information contained in the records shall be obtained
14 pursuant to Section 1-109 of Title 43A of the Oklahoma
15 Statutes.

16 ~~4. The provisions of paragraphs 1 and 2 of this subsection~~
17 ~~shall not apply to, and~~

18 b. requests for medical records made by the Disability
19 Determination Division of the State Department of
20 Rehabilitation Services. The fee for such requests
21 shall be at a rate allowed by the Social Security
22 Administration.

23 B. 1. In cases involving a claim for personal injury or death
24 against any practitioner of the healing arts or a licensed hospital,

1 or a nursing facility ~~or nursing home~~ licensed pursuant to Section
2 1-1903 of Title 63 of the Oklahoma Statutes arising out of patient
3 care, where any person has placed the physical or mental condition
4 of that person in issue by the commencement of any action,
5 proceeding, or suit for damages, or where any person has placed in
6 issue the physical or mental condition of any other person or
7 deceased person by or through whom the person rightfully claims,
8 that person shall be deemed to waive any privilege granted by law
9 concerning any communication made to a physician or health care
10 provider with reference to any physical or mental condition or any
11 knowledge obtained by the physician or health care provider by
12 personal examination of the patient; provided that, before any
13 communication, medical or hospital record, or testimony is admitted
14 in evidence in any proceeding, it must be material and relevant to
15 an issue therein, according to existing rules of evidence.
16 Psychological, psychiatric, mental health, and substance abuse
17 treatment records and information from psychological, psychiatric,
18 mental health, and substance abuse treatment practitioners may only
19 be obtained provided the requirements of Section 1-109 of Title 43A
20 of the Oklahoma Statutes are met.

21 2. Any person who obtains any document pursuant to the
22 provisions of this section shall provide copies of the document to
23 any opposing party in the proceeding upon payment of the expense of
24 copying the document pursuant to the provisions of this section.

1 C. This section shall not apply to the records of an inmate in
2 a correctional institution when the correctional institution
3 believes the release of such information to be a threat to the
4 safety or security of the inmate or the institution.

5 D. 1. As used in this section, the terms "covered entity" and
6 "protected health information" shall have the same meaning as
7 provided under the Health Insurance Portability and Accountability
8 Act of 1996 (HIPAA).

9 2. It shall be unlawful for a covered entity to use or disclose
10 protected health information except as authorized under HIPAA.

11 3. Intentional violation of paragraph 2 of this subsection
12 shall be deemed unprofessional conduct by the covered entity's
13 licensure board or regulatory agency if applicable and subject to
14 mandatory license revocation.

15 4. If a covered entity believes a violation of paragraph 2 of
16 this subsection has occurred or will occur in relation to a request
17 for medical records, the covered entity may apply to a court of
18 competent jurisdiction for relief and the court shall award
19 appropriate relief including, but not limited to, temporary,
20 preliminary, or permanent injunctive relief.

21 SECTION 2. This act shall become effective November 1, 2026."
22
23
24

1 Passed the House of Representatives the 6th day of May, 2026.

2
3
4 Presiding Officer of the House of
Representatives
5

6 Passed the Senate the ____ day of _____, 2026.

7
8
9 Presiding Officer of the Senate
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24

1 ENGROSSED SENATE
2 BILL NO. 423

By: Rader of the Senate

3 and

4 Caldwell (Chad) of the
5 House

6 An Act relating to medical records; amending 76 O.S.
7 2021, Section 19, which relates to access to medical
8 records; modifying applicability of certain
9 provisions; eliminating certain duties of health care
10 providers; authorizing imposition of certain fees;
11 modifying certain fee limits; defining terms; making
12 certain acts unlawful; creating misdemeanor offense;
13 providing administrative and criminal penalties;
14 providing for civil relief; updating statutory
15 language; and providing an effective date.

16 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

17 SECTION 3. AMENDATORY 76 O.S. 2021, Section 19, is
18 amended to read as follows:

19 Section 19. A. 1. Any person who is or has been a patient of
20 a ~~doctor, hospital or other medical institution~~ health care provider
21 or health care facility, or such person's personal representative,
22 shall, as provided under 45 C.F.R., Section 164.502, be entitled,
upon request, to obtain access to the information contained in the
patient's medical records including any x-ray or other photograph or
image, pathology slide, or the patient's medical bills.

23 2. Disclosure of the information described in paragraph 1 of
24 this subsection regarding a deceased patient shall require either a

1 court order or a written release of an executor, administrator, or
2 personal representative appointed by the court, or if there is no
3 such appointment, by the spouse of the patient or, if none, by any
4 responsible family member of the ~~family of the~~ patient. As used in
5 this paragraph, "responsible family member" shall mean the parent,
6 adult child, adult sibling, or other adult relative who was actively
7 involved in providing care to or monitoring the care of the patient
8 as verified by the ~~doctor, hospital or other medical institution~~
9 health care provider or health care facility responsible for the
10 care and treatment of such person.

11 ~~2. Any person who is or has been a patient of a doctor,~~
12 ~~hospital or other medical institution shall be furnished copies of~~
13 ~~all medical records including any x-ray, other photograph or image,~~
14 ~~pathology slide or all medical bills pertaining to that person's~~
15 ~~case upon request and upon the tender of the expenses enumerated in~~
16 ~~this paragraph. The cost of each copy to such person or to the~~
17 ~~personal representative, spouse or responsible family member of such~~
18 ~~person, not including any x-ray or other photograph or image or~~
19 ~~pathology slide, shall be fifty cents (\$0.50) for each page.~~

20 3. A health care provider or health care facility may impose a
21 reasonable, cost-based fee when patients or their personal
22 representatives request copies of medical records; provided, that
23 the fee includes only the cost of applicable expenses listed in 42
24 C.F.R., Section 164.524(c) (4).

1 4. Requests for medical records and medical bills from, or
2 directed to, attorneys, insurance companies, other third parties,
3 and by way of subpoena shall be charged a base fee of ~~Twenty Dollars~~
4 ~~(\$20.00)~~ Twenty-three Dollars (\$23.00) in addition to ~~the~~ a per page
5 ~~charges required pursuant to this section~~ fee of:

6 a. sixty-seven cents (\$0.67) for paper copies, plus
7 postage or delivery fee, or

8 b. forty cents (\$0.40) for electronic copies.

9 The base fee shall be charged regardless of whether any records
10 related to the request are located. A fee of Fifteen Dollars
11 (\$15.00) shall be charged if a certification or an affidavit by the
12 provider regarding the authenticity of the medical records or bills
13 is requested. ~~The physician, hospital or other medical~~
14 ~~professionals and institutions, or their business associates as the~~
15 ~~term is defined in Section 160.103 of Title 45 of the United States~~
16 ~~Code of Federal Regulations shall produce the records in digital~~
17 ~~form at the rate of thirty cents (\$0.30) per page if:~~

18 ~~a. the entire request can be reproduced from an~~
19 ~~electronic health record system,~~

20 ~~b. the records are specifically requested to be delivered~~
21 ~~in electronic format, and~~

22 ~~c. the records can be delivered electronically.~~

23 ~~If a provider or business associate transmits the records~~
24 ~~electronically, no postage shall be charged but a delivery charge~~

1 ~~shall apply.~~ In no event shall a charge for the reproduction of
2 electronically stored and delivered medical records pursuant to this
3 paragraph exceed ~~Two Hundred Dollars (\$200.00)~~ Two Hundred Seventy
4 Dollars (\$270.00) plus postage or delivery fee. The cost of each
5 printed x-ray, other photograph, or image to such person or to the
6 legal representative of such person shall be Fifteen Dollars
7 (\$15.00). If the x-ray, other photograph, or image is provided on a
8 CD/DVD or other electronic media, the fee shall be ~~Twenty Dollars~~
9 ~~(\$20.00)~~ Twenty-three Dollars (\$23.00) per CD/DVD or other
10 electronic media. ~~The physician, hospital, or other medical~~
11 ~~professionals and institutions, or their business associates as the~~
12 ~~term is defined in Section 160.103 of Title 45 of the United States~~
13 ~~Code of Federal Regulations, shall not charge a person who requests~~
14 ~~their own record a fee for searching, retrieving, reviewing, and~~
15 ~~preparing medical records of the person. No mailing fee shall be~~
16 ~~charged for copies provided by facsimile. All requests for medical~~
17 ~~records made pursuant to this subsection shall be subject to the~~
18 ~~fees described in this section regardless of where the copies or~~
19 ~~electronic versions of such records are actually produced.~~

20 ~~3.~~ 5. The provisions of ~~paragraphs 1 and 2~~ of this subsection
21 shall not apply to:

22 a. psychological, psychiatric, mental health, or
23 substance abuse treatment records. In the case of
24 psychological, psychiatric, mental health, or

1 substance abuse treatment records, access to
2 information contained in the records shall be obtained
3 pursuant to Section 1-109 of Title 43A of the Oklahoma
4 Statutes.

5 ~~4. The provisions of paragraphs 1 and 2 of this subsection~~
6 ~~shall not apply to, and~~

7 b. requests for medical records made by the Disability
8 Determination Division of the State Department of
9 Rehabilitation Services. The fee for such requests
10 shall be at a rate allowed by the Social Security
11 Administration.

12 B. 1. In cases involving a claim for personal injury or death
13 against any practitioner of the healing arts or a licensed hospital,
14 or a nursing facility ~~or nursing home~~ licensed pursuant to Section
15 1-1903 of Title 63 of the Oklahoma Statutes arising out of patient
16 care, where any person has placed the physical or mental condition
17 of that person in issue by the commencement of any action,
18 proceeding, or suit for damages, or where any person has placed in
19 issue the physical or mental condition of any other person or
20 deceased person by or through whom the person rightfully claims,
21 that person shall be deemed to waive any privilege granted by law
22 concerning any communication made to a physician or health care
23 provider with reference to any physical or mental condition or any
24 knowledge obtained by the physician or health care provider by

1 personal examination of the patient; provided that, before any
2 communication, medical or hospital record, or testimony is admitted
3 in evidence in any proceeding, it must be material and relevant to
4 an issue therein, according to existing rules of evidence.

5 Psychological, psychiatric, mental health, and substance abuse
6 treatment records and information from psychological, psychiatric,
7 mental health, and substance abuse treatment practitioners may only
8 be obtained provided the requirements of Section 1-109 of Title 43A
9 of the Oklahoma Statutes are met.

10 2. Any person who obtains any document pursuant to the
11 provisions of this section shall provide copies of the document to
12 any opposing party in the proceeding upon payment of the expense of
13 copying the document pursuant to the provisions of this section.

14 C. This section shall not apply to the records of an inmate in
15 a correctional institution when the correctional institution
16 believes the release of such information to be a threat to the
17 safety or security of the inmate or the institution.

18 D. 1. As used in this section, the terms "covered entity" and
19 "protected health information" shall have the same meaning as
20 provided under the Health Insurance Portability and Accountability
21 Act of 1996 (HIPAA).

22 2. It shall be unlawful for a covered entity to use or disclose
23 protected health information except as authorized under HIPAA.
24

3. Intentional violation of paragraph 2 of this subsection shall be deemed unprofessional conduct by the covered entity's licensure board or regulatory agency if applicable and subject to mandatory license revocation.

4. A covered entity found in violation of paragraph 2 of this subsection shall, upon conviction, be guilty of a misdemeanor punishable by a fine not to exceed One Thousand Dollars (\$1,000.00).

5. If a covered entity believes a violation of paragraph 2 of this subsection has occurred or will occur in relation to a request for medical records, the covered entity may apply to a court of competent jurisdiction for relief and the court shall award appropriate relief including, but not limited to, temporary, preliminary, or permanent injunctive relief.

SECTION 4. This act shall become effective November 1, 2025.

Passed the Senate the 26th day of March, 2025.

Presiding Officer of the Senate

Passed the House of Representatives the ____ day of _____,
2025.

Presiding Officer of the House
of Representatives

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24